

		Accordingly, Plaintiff is also awarded \$3,495.53 in costs. Plaintiff to give notice.
3	Eltiste vs. City of Tustin 2026-01540573	Demurrer to Complaint Defendant City of Tustin's (City) Demurrer to the Complaint is OVERRULED. A complaint is subject to dismissal on demurrer under Code of Civil Procedure section 430.10 where the court has no jurisdiction of the subject of the cause of action alleged in a complaint. The City argues the court lacks subject matter jurisdiction over Plaintiff's claims as his alleged injuries were sustained while working as a volunteer for the City's Parks and Recreation Department. Such injuries are covered by the City's workers' compensation program, which are the exclusive remedy for injuries arising out of the course and scope of employment. (Lab. Code § 3602(a); Lab. Code § 3363.5(a).) The Complaint fails to allege Plaintiff was an employee or volunteer for the City's Parks and Recreation Department. The City makes such argument without any proof that such relationship existed. A demurrer can be used only to challenge defects that appear on the face of the pleadings under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) No extrinsic evidence can be considered. A demurrer based on workers' compensation exclusivity is only proper when the complaint itself affirmatively alleges facts indicating coverage. (<i>Arriaga v. Cnty. of Alameda</i> (1995) 9 Cal.4th 1055, 1060.) Where a complaint does not affirmatively allege facts indicating workers' compensation coverage on its face, the defendant cannot succeed on a demurrer based on the exclusive remedy defense. (<i>Gibbs v. Am. Airlines, Inc.</i>, (1999) 74 Cal.App.4th 1, 13.) Accordingly, the demurrer to the Complaint based on lack of subject matter jurisdiction is OVERRULED. Defendant to give notice.
4	Hill vs. Carillo	Motion to Strike Portions of Complaint

2026-01539605	Defendant Christopher Carillo’s Motion to Strike Portions of Plaintiff Robert Daniel Hill’s Complaint is GRANTED. (Code Civ. Proc. §436, subd. (a); <i>Turman v. Turning Point of Central Calif., Inc.</i> (2010) 191 Cal.App.4th 53, 63.) Plaintiff shall have 20 days to file a First Amended Complaint. Punitive damages are governed by Civil Code section 3294: “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code § 3294(a).) To state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in section 3294. (<i>Coll. Hosp., Inc. v. Superior Court</i> (1994) 8 Cal.4th 704, 721.) “Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (<i>Id.</i> at 725.) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code, § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).) In <i>Potter v. Firestone Tire & Rubber Co.</i> (1993) 6 Cal.4th 965, 1004, the California Supreme Court explained that “punitive damages sometimes may be assessed in unintentional tort actions.” In <i>Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 894-895, it noted that “something more than the mere commission of a tort is always required for punitive damages. There must be circumstances of aggravation or outrage, such as spite or malice, or a fraudulent or evil motive on the part of the defendant, or such a conscious and deliberate disregard of the interests of others that his conduct may be called willful or wanton.” Indeed, “punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff’s rights, a level which decent citizens should not have to tolerate.” (<i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 [internal quotation omitted].) The “conclusory characterization of defendant’s conduct as intentional, willful and fraudulent is a patently insufficient statement of oppression, fraud or malice...within the meaning of
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		section 3294.” (<i>Brousseau v. Jarrett</i> (1977) 73 Cal.App.3d 864, 872.) The act of willfully becoming intoxicated and operating a motor vehicle alone may support a claim for punitive damages. (<i>See Taylor v. Superior Court</i> (1979) 24 Cal.3d 890, 895-896.) But a plaintiff must plead and establish that defendant’s conduct “was such as to amount to a conscious disregard of the safety of and probable injury to other persons.” (<i>See Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 87.) In <i>Taylor</i>, the court held that allegations of the defendant’s operation of an automobile under the influence disclosed a conscious disregard of the probable dangerous consequences, where defendant was an alcoholic who was aware of the seriousness of his problem, of his tendency to drive while intoxicated, and of the dangerousness of his driving while in such condition. Likewise, the court in <i>Dawes</i> found that the trial court had abused its discretion in striking punitive damages claim, where the complaint alleged the defendant was driving while intoxicated in a manner where risk of injury was probable. (<i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, 86.) Specifically, the complaint in <i>Dawes</i> alleged the intoxicated defendant zigzagged in and out of traffic in excess of 65 miles per hour in a 35-mile per hour zone, in crowded beach recreation area at 1:30 on a weekend afternoon. (<i>Ibid.</i>) The only fact alleged in the complaint is the fact that Carillo was intoxicated while operating the vehicle at the time of the accident. There are no additional facts such as those presented in <i>Dawes</i> and <i>Taylor</i> which would serve as a basis for a punitive damages award. Plaintiff has pointed to additional facts not included in the Complaint in the opposition, such as the traffic collision report. Accordingly, there is a reasonable possibility Plaintiff could adequately plead a basis for punitive damages if granted leave to amend. Moving Defendant shall provide notice.
5	Kiani vs. Koffey 2025-01484637	Motion to Seal (ROA 157) Plaintiff Joe Kiani’s Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records he seeks to seal consist of, or directly reference, privileged and private